# The Foreign Athlete Pipeline: International Recruiting in American College Athletics as a Geopolitical and National Security Issue, 1952-2026

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## Abstract

This timeline examines the history of international student-athlete recruitment in American intercollegiate athletics as a geopolitical, legal, and national security problem rather than a purely sporting one. Tracing developments from the Cold War period through 2026, the timeline argues that the foreign athlete pipeline has functioned simultaneously as an instrument of American soft power, a surface for foreign government talent acquisition programs, and a site of compounding legal inequity for the international athletes whose labor it extracts. Ten entries document the institutional decisions, legislative actions, and geopolitical events most consequential to the pipeline's development, including the post-9/11 securitization of university immigration compliance, the intersection of Chinese state talent programs with American campus athletic pipelines, and the legal fault lines produced by the NCAA's adoption of name, image, and likeness rights and direct revenue sharing for athletes on F-1 student visas.

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The internationalization of American intercollegiate athletics is routinely treated, in both popular commentary and the limited scholarly literature that addresses it, as an unremarkable feature of a globalized competitive landscape: coaches recruit the best available athletes, and the best available athletes are increasingly distributed across national borders. This framing is analytically inadequate. The foreign athlete pipeline, defined as the institutional infrastructure through which non-American athletes are recruited to, enrolled in, and competing for American college programs, is not a neutral market mechanism. It is a political economy institution embedded in the international system, whose operations are shaped by Cold War foreign policy logic, federal immigration law, national security doctrine, and the financial incentives of American higher education in ways that the NCAA's governance framework has never adequately acknowledged or addressed (Dichter & Johns, 2014; Thibault, 2009).

This timeline traces the most consequential developments in that history from 1952 to the present, arguing that the foreign athlete pipeline has functioned simultaneously as an instrument of American soft power, a vector for foreign government talent programs, and a site of unresolved legal inequity for the international athletes whose labor it extracts. The ten entries that follow move chronologically through these developments, identifying the specific institutional decisions, legislative actions, and geopolitical events that have shaped the pipeline's current form and its current legal and political vulnerabilities.

**1952: The Cold War Reframes the Institutional Purpose of American University Athletics**

The Soviet Union's debut at the 1952 Helsinki Summer Olympic Games represented, in the official framing of the American national security establishment, far more than an athletic milestone. It was the opening move in an ideological competition that the Eisenhower administration and its predecessors in the Truman State Department had anticipated with growing anxiety for years. The Soviet team's unofficial second-place finish in the medal count was close enough to the American delegation to generate alarm in both the popular press and classified policy documents, and it triggered a reappraisal of the relationship between American university athletic programs and the instruments of national power. Because the Olympic framework of the period barred professional athletes from competition, the United States' primary talent reserve for international athletic competition resided almost entirely within the intercollegiate system. American college athletics was, by structural default, the nation's first line of athletic representation in the world's most visible ideological theater (Dichter & Johns, 2014).

The implications of this position were not immediately understood by the NCAA or by university athletic departments as governance problems. They were understood, rather, as prestige problems: programs that produced Olympic champions attracted recruits, donors, and media attention. The institutional incentives of college athletics and the foreign policy imperatives of the Cold War were aligned in the early 1950s in ways that neither party was required to make explicit. Rider (2011) documents the degree to which federal officials conceptualized the Olympic medal table as a proxy measure of systemic superiority (the same logic that would later animate the space race) and treated the university athletic pipeline as an asset whose productivity warranted federal interest, if not direct federal investment.

What this moment established for the longer history of international recruiting was the underlying analytical premise: American college athletics was not a purely domestic institution. It was an institution embedded in the international system, whose performance carried implications for American foreign policy and whose composition, specifically who competed and under what conditions, was a matter of national interest. The NCAA and the Amateur Athletic Union were, during this same period, locked in a jurisdictional dispute over control of American amateur athletics that the 1952 Games sharpened into a policy question about national capacity (Guttmann, 1994). That dispute remained unresolved for decades, but it established the precedent that the foreign policy dimension of college athletics was a legitimate concern of federal actors, not merely a private governance matter for the NCAA. Every subsequent development in this timeline is downstream of the institutional logic consolidated at Helsinki in 1952.

**1962**: **Soft Power and the State Department's Coordination with College Athletic Programs**

In the summer of 1962, as the most acute sequence of Cold War crises since Korea reached its peak (the Berlin Wall had gone up the previous August, and the Cuban Missile Crisis would begin in October), the U.S. State Department coordinated a track and field dual meet between American and Soviet athletes at Stanford University. The event was not incidental to American foreign policy; it was an instrument of it. Rider (2011) documents the State Department's involvement in sport exchanges during this period as a deliberate effort to maintain channels of cultural contact with the Soviet Union during periods when formal diplomatic communication was strained. The Stanford meet was organized with the explicit participation of university athletic officials coordinating with federal representatives, establishing a pattern in

which college programs functioned as operational arms of what Joseph Nye would later theorize as soft power, defined as the capacity to achieve foreign policy objectives through attraction and co-optation rather than coercion (Nye, 2004).

The significance of this event for the history of international recruiting is not that it directly produced international athletes on American rosters. It did not. Its significance is that it documents, in specific institutional terms, the moment when the State Department's foreign policy apparatus and the NCAA's intercollegiate competition infrastructure were operating in explicit coordination. The university athletic director was not simply hosting a sporting event; he was executing a foreign policy function. This arrangement carried no formal legal basis, no treaty obligation, and no accountability mechanism. It was an ad hoc alignment of institutional interests between a federal agency seeking diplomatic channels and a university athletic program seeking national visibility. That informal, interest-based alignment is the structural precursor to the more consequential and less legible intersections that would develop over the following six decades (Dichter & Johns, 2014).

The Cold War sport exchange literature documents dozens of similar arrangements throughout the 1960s, many involving college programs hosting Eastern Bloc athletes under State Department facilitation. What is analytically important about the 1962 Stanford case specifically is its temporal placement: it occurred at the height of Cold War tension, when the value of non-governmental contact between American and Soviet citizens was highest and the formal diplomatic infrastructure was most constrained. The college athletic program, in this context, served a state function precisely because it was not formally a state actor. It could host Soviets when the State Department could not meet them openly. This is the foundational paradox

of the foreign athlete pipeline: its political utility has always derived partly from its apparent political neutrality (Houlihan, 1994).

**1960s-1970s: The First Internationalization Wave and the Limits of NCAA Governance**

The internationalization of American college athletic rosters did not originate with a policy decision, a governance framework, or a deliberate strategic choice by the NCAA. It emerged organically from the competitive logic of recruiting, concentrated initially in track and field, driven by coaches seeking athletes capable of winning conference championships and national titles regardless of national origin. Research on the history of international athlete migration in American college sports documents that the first sustained wave of foreign-born athletes arrived on NCAA rosters during the late 1960s and into the 1970s, with athletes from sub-Saharan Africa and the Caribbean recruited predominantly by programs in the Southwest and Pacific regions building distance and sprint programs capable of national competitiveness (Maguire & Bale, 1994). The process was decentralized and largely invisible at the institutional level, with individual coaches making individual recruiting decisions that, in aggregate, constituted a structural transformation of the workforce composition of American college athletics.

The governance implications of this first wave were substantial and were not adequately addressed by the NCAA during the period in which they emerged. The NCAA's eligibility certification framework had been constructed with domestic athletes in mind, and it rested on an amateurism concept with deep roots in Anglo-American class ideology, a concept that had been operationalized in regulatory form with almost no consideration of how it would apply to athletes whose competitive backgrounds were shaped by national programs, state stipends, and

government-funded training infrastructure outside the American context (Guttmann, 1994). An African distance runner who had received equipment and travel support from a national athletics federation occupied an eligibility position that the NCAA's rule framework was not equipped to evaluate consistently. The result was a period of case-by-case adjudication that produced inconsistent outcomes and provided no coherent guidance to programs beginning to recruit internationally.

Maguire and Bale (1994) situate this first wave of athletic labor migration within the broader political economy of global sport, applying a dependency framework to analyze the directional flow of athletic talent from peripheral nations to core institutional structures in the United States and Western Europe. The framework invites two objections, and both deserve engagement. The first is that individual athletes were not straightforwardly exploited: many built careers, gained citizenship, and returned home with resources their domestic athletic infrastructure could not have provided. Individual benefit and structural extraction are not mutually exclusive, however, and the dependency critique becomes more defensible when its target is specified precisely. The extraction occurs at the federation level, where American universities capture the competitive return on years of state-funded developmental investment without compensating the originating institution. The second objection is subtler: elite runners who train at American universities and compete internationally arguably raise the global profile of Kenyan athletics, producing a reputational return even without direct compensation. That is true as far as it goes. What it does not account for is that the visibility accrues to Kenyan athletics broadly while the competitive and financial return, including conference titles, television appearances, and recruiting credibility, accrues specifically to the American university. The asymmetry is not about recognition. It is about who captures the institutional value of the athletic

development investment, and the answer is consistently the university rather than the federation. That causal structure, extraction flowing from scarcity toward resource-rich institutions through market asymmetry, is specific to what the dependency framework describes. It is worth naming precisely here because the pipeline's later history will produce a second and structurally distinct vulnerability, one where institutional openness rather than institutional scarcity becomes the mechanism of exposure. Those are different problems with different causal origins, and the distinction matters for understanding what, if anything, could be done about either (Darby et al., 2007; Maguire & Bale, 1994).

## 1984-1990: The Globalization of High-Revenue Sports and the Collapse of the Domestic Pipeline Assumption

The 1984 NCAA men's basketball tournament crystallized, in a single bracket, a transformation that had been developing quietly for a decade. Patrick Ewing, who had emigrated from Kingston, Jamaica as a teenager, led Georgetown to the national championship. Hakeem Olajuwon, a native of Lagos, Nigeria, carried Houston to the Final Four. Both players had been recruited through entirely conventional channels, their foreign origins treated by their respective programs as athletically irrelevant and by the broader institutional structure of college basketball as administratively uncomplicated. The public and media attention their performances generated demonstrated, at the highest level of visibility in college athletics, that international athletes could anchor championship programs in the sport most directly responsible for the NCAA's television revenue, its national audience, and the financial model that funded college sports across all divisions (Andrews, 2004).

The fall of the Berlin Wall in November 1989 removed the most significant structural barrier to international recruiting that had existed for the entirety of the Cold War period. Eastern European athletes, including swimmers, gymnasts, tennis players, and rowers, who had trained under state-funded systems that were often technically superior to American club programs became available to college coaches for the first time. The recruiting implications were immediate and transformative. Research on international talent migration in NCAA tennis documents the sport's transition from a predominantly domestic competitive environment in the late 1980s to one in which international athletes constituted the majority of scholarship rosters in many conferences within a decade of the Wall's fall (Maguire & Bale, 1994). Tennis was the most extreme case, but the pattern it exhibited, namely rapid roster internationalization following the removal of geopolitical barriers, anticipated dynamics that would subsequently emerge in swimming, soccer, and track.

What the 1984–1990 period accomplished analytically was to collapse the assumption, which had operated implicitly within NCAA governance since its founding, that the domestic talent pipeline was both sufficient and normatively appropriate. By demonstrating that international athletes could perform at the highest levels of college competition in the sports generating the most revenue and the most public attention, the programs that recruited Ewing and Olajuwon, along with the dozens of coaches who replicated their logic throughout the 1980s, established international recruiting as a standard competitive strategy rather than an exceptional practice. The NCAA's governance apparatus did not keep pace with this transformation. No comprehensive framework for evaluating international eligibility, managing the competitive implications of globally asymmetric athletic development systems, or accounting for the foreign policy dimensions of roster internationalization was developed during this period. The institution

remained structured around domestic assumptions while its member programs were operating in a global labor market (Thibault, 2009).

**2001-2002**: **The Securitization of the University-Immigration Nexus After September 11**

The September 11 attacks produced the most consequential transformation of the legal architecture governing international students in American universities since the establishment of the F-1 visa category in the Immigration and Nationality Act of 1952. The USA PATRIOT Act, signed on October 26, 2001, and the subsequent creation of the Student and Exchange Visitor Information System (SEVIS) through the Enhanced Border Security and Visa Entry Reform Act of 2002, converted American universities from passive hosts of international students into active reporting agents for federal immigration enforcement. Under the SEVIS framework, institutions were required to submit real-time updates on international student enrollment status, academic progress, address changes, and travel for every F-1 and J-1 visa holder in their programs directly to Immigration and Customs Enforcement. For athletic departments, which had previously carried no immigration monitoring obligations beyond confirming that international recruits held valid visas at the time of enrollment, this created an entirely new category of administrative compliance responsibility (U.S. Department of Homeland Security, 2003).

The securitization theory framework developed by Buzan et al. (1998) provides a useful analytical lens for understanding what the post-9/11 legislation accomplished in the context of international higher education. Securitization, in this framework, describes the process by which a political actor successfully frames a previously non-security issue as an existential threat requiring emergency measures that transcend normal political process. The conversion of international student enrollment, which had previously been understood as an economic,

educational, and to a lesser extent foreign policy issue, into a national security matter was accomplished with remarkable speed in the months following September 11, facilitated by the documented fact that several of the hijackers had been present in the United States on valid student visas. The SEVIS system was the institutional product of that successful securitization: it embedded the security framing permanently in the administrative infrastructure of American universities, including their athletic departments (U.S. Department of Homeland Security, 2003).

The long-term significance of the post-9/11 visa framework for international college athletics was not immediately apparent in 2002, because the NCAA's existing amateurism rules prohibited athlete compensation regardless of visa status. Domestic and international athletes were subject to the same income prohibition, which meant that the F-1 visa's restriction on outside employment produced no additional constraint. The hardening of the F-1 framework at the federal level was, in the language of institutional path dependence, a contingent event whose consequences were latent until a subsequent policy change, the NCAA's adoption of name, image, and likeness rights in 2021 activated them. What SEVIS created was not a problem in 2002; it created the legal infrastructure through which a problem would be produced two decades later, when the NCAA's policy changed while the federal immigration framework did not (Hofstra Journal of International Business & Law, 2022).

### **2008–2015**: **China's State Talent Programs and the Dual-Use Problem of the International Athletic Pipeline**

China's launch of the Thousand Talents Plan in 2008, the same year Beijing hosted the Summer Olympics and announced its emergence as a global sporting power in the most visible possible terms, introduced a dimension to the landscape of American higher education that

universities were institutionally unprepared to recognize or respond to. The Thousand Talents Plan was not an informal network or an opportunistic influence effort. It was a deliberate, state-directed campaign to extract expertise from American universities and redirect it toward Chinese military and economic development priorities. The U.S. Senate Permanent Subcommittee on Investigations documented that the program systematically targeted American research institutions, that participants were frequently instructed to conceal their Chinese government affiliations from their American employers, and that the federal government had invested over $150 billion in university research that the program had been designed to access (U.S. Senate Permanent Subcommittee on Investigations, 2019). FBI Director Christopher Wray testified before Congress that China was conducting this campaign at a scale that distinguished it from conventional foreign influence operations, describing the use of nontraditional collectors in academic settings, including professors, scientists, and students, as present in virtually every FBI field office across the country (Wray, 2019).

The mechanism through which this campaign reached into university campuses was not invisible. Chinese Students and Scholars Associations, the primary campus organizations serving Chinese nationals studying abroad, were not independent student groups. A 2018 report by the U.S.-China Economic and Security Review Commission documented that CSSA chapters were directly subordinate to and received political direction from Chinese embassy and consular officials, ties the associations frequently attempted to conceal from university administrators (U.S.-China Economic and Security Review Commission, 2018). A Foreign Policy investigation the same year confirmed that CSSAs regularly accepted consular funding and that embassy officials assigned regional contacts responsible for relaying directives to chapter presidents (Meinhardt & Groll, 2018). CSSAs hosted talent recruitment competitions explicitly tied to the

Thousand Talents Plan on American campuses, making them the documented institutional contact point between the Chinese consular apparatus and the Chinese national student population broadly. China was not passively benefiting from American university openness. It was actively and deliberately exploiting it.

The foreign athlete pipeline and China's campus influence campaign were products of the same institutional condition. American universities were building international athletic rosters for competitive advantage and hosting a Chinese national student population that a deliberate foreign government program was systematically cultivating, and they were doing both with no governance infrastructure capable of seeing these as related phenomena. The same incentive structure that led a swim coach to recruit a Chinese national without any national security consideration led a university president to expand Chinese enrollment without one either. China's campaign was sophisticated enough to exploit that compartmentalization deliberately. The athletic pipeline did not create the vulnerability. It is evidence of how thoroughly the vulnerability had been built into the institution before anyone in university administration recognized it as a problem (U.S. Senate Permanent Subcommittee on Investigations, 2019; Wray, 2019).

### **2019**: **Congressional Documentation of the National Security Vulnerability in American Higher Education**

In November 2019, the U.S. Senate Permanent Subcommittee on Investigations published "Threats to the U.S. Research Enterprise: China's Talent Recruitment Plans," the most detailed public accounting to that point of how Chinese government talent programs had operated within American universities for over a decade. The report documented that the federal

government had invested more than $150 billion in university research that Chinese talent programs had systematically targeted for access, and that universities had largely failed to disclose conflicts of interest created by their faculty members' participation in those programs. FBI Director Christopher Wray's congressional testimony in the months preceding the report's release characterized China's talent recruitment operations as representing a "whole-of-society" threat that utilized "non-traditional collectors," a category that explicitly included university students and researchers and not only intelligence operatives (U.S. Senate Permanent Subcommittee on Investigations, 2019).

The report's institutional target was the large American research university: the same category of institution that had driven the internationalization of college athletics for four decades. The vulnerability it documented was produced by the same underlying institutional logic that had built the foreign athlete pipeline: universities had maximized international enrollment because doing so served their financial and reputational interests, and they had done so without developing governance infrastructure adequate to the national security implications of operating as major nodes in global flows of people, information, and government-affiliated talent programs. The Senate PSI report made explicit what the athletic recruiting literature had not: the same universities that competed for Chinese swimmers and gymnasts were hosting researchers whose work was being systematically targeted by the same Chinese government programs maintaining contact with those athletes (U.S. Senate Permanent Subcommittee on Investigations, 2019).

The report triggered legislative responses that altered the operating environment for international student enrollment at major universities, including pressure on universities to close Confucius Institutes, new disclosure requirements for federal grant recipients with foreign

government affiliations, and expanded FBI campus outreach programs. Dozens of the campuses that shuttered Confucius Institutes in response to congressional pressure in 2019 and 2020 were simultaneously operating active international athletic recruiting pipelines in sports with significant Chinese athlete representation. The institutional contradiction was not addressed by any of the legislative responses: policymakers treated research security and athletic competition as separate domains, even as the foreign athlete pipeline and the foreign government talent programs they were targeting operated in the same institutional space (Nafziger, 2004; U.S. Senate Permanent Subcommittee on Investigations, 2019).

**2021**: **Name, Image, and Likeness Rights Activate a Latent Legal Fault Line**

The NCAA's adoption of name, image, and likeness (NIL) rights, which took effect on July 1, 2021 following the Supreme Court's unanimous ruling in NCAA v. Alston (2021), represented the most significant structural modification to the NCAA's compensation framework since the organization codified its amateurism principles in the early twentieth century. The policy permitted college athletes to earn compensation through endorsement agreements, licensing arrangements, and personal appearances without triggering eligibility consequences. It was framed as a correction of a long-standing inequity: the appropriation of athlete labor and commercial value by institutions and media partners who captured that value while athletes remained formally unpaid. What was not prominently featured in the public discourse surrounding the policy's adoption was that it activated, for the first time in a consequential economic context, the latent legal fault line created by the F-1 visa framework's prohibition on outside employment. More than 25,000 international student-athletes were structurally excluded

from full NIL participation not by NCAA policy but by federal immigration law (Hofstra Journal of International Business & Law, 2022).

The legal mechanics of the exclusion were embedded in the Immigration and Nationality Act. The F-1 nonimmigrant student visa permits its holder to engage in full-time study and limited on-campus employment but prohibits outside employment without specific authorization from U.S. Citizenship and Immigration Services, authorization the agency had not issued a pathway for in the NIL context. Whether executing an endorsement agreement constituted "employment" within the meaning of the Act had not been formally adjudicated by a federal court or resolved through agency rulemaking. The conservative legal interpretation adopted by the substantial majority of university general counsel offices in the months following July 2021 was that NIL deals created sufficient risk of F-1 violation to advise international athletes against participation without individual immigration counsel review. In practice, this functioned as a near-total barrier to participation for international athletes who lacked the resources or institutional support to obtain that review (Hofstra Journal of International Business & Law, 2022).

The result was a compensation framework that applied to domestic athletes and not to the international athletes competing alongside them under identical athletic obligations. The political economy of that asymmetry is analytically striking. The same immigration framework hardened in the immediate aftermath of September 11 for national security reasons was now producing a documented financial disadvantage for a specific category of athletic labor, and that disadvantage was not randomly distributed. The workers most affected were disproportionately from Global South countries, the same countries from which the first wave of international athletic labor migration had been drawn in the 1970s. The dependency dynamic that Maguire and

Bale (1994) identified in the original internationalization of American college athletics had acquired a new legal dimension: international athletes' labor was increasingly valuable to American universities while their legal capacity to capture any share of that value remained more constrained than their domestic counterparts' (Hofstra Journal of International Business & Law, 2022; Maguire & Bale, 1994).

**2025**: **The House v. NCAA Settlement and the Immigration Compliance Crisis in Revenue-Sharing Implementation**

The settlement of House v. NCAA, finalized and approved in 2025, authorized Power Five universities to share up to $20.5 million annually in athletics revenue directly with their athletes beginning in the 2025-2026 academic year. The settlement resolved antitrust claims that the NCAA's compensation restrictions had illegally suppressed athlete earnings and represented, in the assessment of legal scholars across the political spectrum, the effective end of the NCAA's century-old amateurism model in high-revenue sports. For domestic athletes, the revenue-sharing framework opened a pathway to direct institutional compensation that had not existed at any point in the history of American intercollegiate athletics. For international athletes on F-1 student visas, the settlement introduced a new and more acute immigration compliance problem than the one created by NIL, because the payments at issue were larger, more systematically administered, and tied more directly to the employment-versus-scholarship classification question that immigration law had left unresolved (McCarter & English LLP, 2025).

The core legal problem in implementing the House settlement for international athletes was the distinction between active and passive income under immigration law. The F-1 visa framework does not prohibit international students from receiving scholarships, grants, or other

financial support that is characterized as educational assistance rather than employment compensation. The NCAA's traditional athletic scholarship had always been characterized as an educational benefit rather than payment for athletic services, and that characterization had allowed universities to award scholarships to F-1 visa holders without triggering employment prohibitions. The House settlement's revenue-sharing framework, however, introduced payment structures that were functionally more difficult to characterize as purely educational: performance-based bonuses, playing-time thresholds, and statistical benchmarks built into some revenue-sharing agreements bore the structural characteristics of employment compensation under the analytical frameworks that federal immigration agencies applied to income classification (McCarter & English LLP, 2025).

University legal offices navigating the implementation of revenue-sharing for international athletes in 2025 were operating without authoritative federal guidance. The Department of Homeland Security had not issued rulemaking addressing how House settlement payments would be treated under F-1 visa regulations. U.S. Citizenship and Immigration Services had not issued a policy memorandum. The advice being produced by law firms specializing in NCAA compliance was that universities should structure revenue-sharing for international athletes as flat, performance-independent payments to reduce active-income reclassification risk. This was advisory guidance based on the best available interpretation of existing law, not an authoritative resolution of the legal question (McCarter & English LLP, 2025). The result was a governance environment in which individual universities were making high-stakes decisions about the immigration status of specific athletes without a coherent national framework, producing the kind of institutional inconsistency that has characterized

NCAA governance of international athletes since the first wave of international recruiting in the 1970s.

**2026**: **The Foreign Athlete Pipeline in a Transformed Geopolitical Environment**

By early 2026, the foreign athlete pipeline in American intercollegiate athletics operated within a geopolitical environment defined by the cumulative weight of seven decades of unresolved institutional contradictions. The Trump administration's continuation and expansion of Presidential Proclamation 10043, originally issued in May 2020, formally restricted F-1 and J-1 visas for Chinese nationals affiliated with universities identified as supporting China's military-civil fusion strategy. The proclamation's text was limited to that specific population, but its practical reach extended considerably further. The vague "military-civil fusion" language gave consular officers wide discretion in application, and university legal offices, uncertain about where the formal boundaries actually fell, advised caution across their entire Chinese international student populations rather than risk individual visa revocations (University of California Academic Senate, 2021). Scholars and journalists documented the resulting effect well beyond the proclamation's STEM scope, with Chinese students in fields entirely unconnected to defense technology reporting visa denials and universities watching enrollment trends shift before any formal policy change required it (Mervis, 2023; University of California Academic Senate, 2021). For athletic departments recruiting Chinese nationals in swimming, gymnastics, track, and tennis, this institutional overcorrection was more operationally significant than the proclamation's formal text. The barrier was not the law as written. It was the compliance behavior the law's ambiguity produced.

The demographic data on international student enrollment confirmed that the geopolitical friction of the preceding decade had begun to reshape the composition of the international student population in ways the athletic pipeline would eventually reflect. Research from the Brookings Institution documented that India surpassed China as the leading country of origin for international students at American universities in the 2023-2024 academic year, the first such reversal since 2008, as Chinese enrollment declined in response to visa restrictions, bilateral tensions, and Chinese government encouragement of domestic higher education as an alternative to study abroad (Bahar & Marczak, 2024). NCAA compliance offices at programs with historically robust Chinese recruiting pipelines were, by 2026, beginning to assess whether specific recruits' home university affiliations could trigger Proclamation 10043 complications, a form of geopolitical due diligence for which no athletic department had been trained or staffed.

What 2026 reveals that no earlier moment in this timeline could is that all of the pipeline's dimensions are now in active tension simultaneously for the first time. In 1952 the foreign policy and competitive dimensions were aligned. In 2002 the national security and immigration dimensions were aligned. By 2026, immigration law, foreign policy doctrine, national security oversight, and athlete compensation frameworks are all pressing on the same institutional structure at the same time, pulling in directions the NCAA has no mechanism to reconcile and that no single federal agency has claimed jurisdiction over. The dependency framework that Maguire and Bale (1994) applied to the first wave of international recruiting described a pipeline that extracted athletic labor from the periphery for the benefit of core American institutions. What the full arc of this history reveals is that the same institutional openness that made that extraction possible has also made American universities extractable in return, open enough to recruit globally, and open enough to be systematically targeted by the

foreign governments whose nationals they recruited. The pipeline built on American institutional advantage has become a surface for American institutional vulnerability. That is not a governance gap that better NCAA compliance procedures will close. It is a structural condition produced by seven decades of treating college athletics as a purely competitive enterprise while the international system it operates within treated it as something else entirely (Dichter & Johns, 2014; Maguire & Bale, 1994; U.S. Senate Permanent Subcommittee on Investigations, 2019).

## References

Andrews, D. L. (2004). Sport in the late capitalist moment. In T. Slack (Ed.), The commercialisation of sport (pp. 3-28). Routledge.

Bahar, D., & Marczak, J. (2024). How America lost the heart of China's top talent. Brookings Institution. https://www.brookings.edu/articles/how-america-lost-the-heart-of-chinas-top-talent/

Buzan, B., Waever, O., & de Wilde, J. (1998). Security: A new framework for analysis. Lynne Rienner Publishers.

Darby, P., Akindes, G., & Kirwin, M. (2007). Football academies and the migration of African football labor to Europe. Journal of Sport & Social Issues, 31(2), 143-161. https://doi.org/10.1177/0193723507300481

Dichter, H. L., & Johns, A. L. (Eds.). (2014). Diplomatic games: Sport, statecraft, and international relations since 1945. University Press of Kentucky.

Guttmann, A. (1994). Games and empires: Modern sports and cultural imperialism. Columbia University Press.

Hofstra Journal of International Business & Law. (2022). International college athletes and NIL: The F-1 visa problem. Hofstra University School of Law.

Houlihan, B. (1994). Sport and international politics. Harvester Wheatsheaf.

Maguire, J., & Bale, J. (Eds.). (1994). The global sports arena: Athletic talent migration in an interdependent world. Frank Cass.

McCarter & English LLP. (2025). House v. NCAA settlement and international student-athletes: Immigration compliance considerations. McCarter & English.

Meinhardt, L., & Groll, E. (2018, March 7). China's long arm reaches into American campuses. *Foreign Policy*. https://foreignpolicy.com/2018/03/07/chinas-long-arm-reaches-into-american-campuses-chinese-students-scholars-association-university-communist-party/

Mervis, J. (2023, May 18). A valid U.S. visa didn't stop these Chinese graduate students from being deported. *Science*. https://www.science.org/content/article/valid-u-s-visa-didn-t-stop-these-chinese-graduate-students-being-deported

Nafziger, J. A. R. (2004). International sports law (2nd ed.). Transnational Publishers.

Nye, J. S. (2004). Soft power: The means to success in world politics. PublicAffairs.

Rider, T. C. (2011). Cold War games: Propaganda, the Olympics, and U.S. foreign policy. University of Illinois Press.

Thibault, L. (2009). Globalization of sport: An inconvenient truth. Journal of Sport Management, 23(1), 1-20. https://doi.org/10.1123/jsm.23.1.1

University of California Academic Senate. (2021). *Report on Presidential Proclamation 10043*. University of California. https://senate.universityofcalifornia.edu/_files/reports/rh-md-presidential-proclamation-10043.pdf

U.S.-China Economic and Security Review Commission. (2018). *China's overseas united front work: Background and implications for the United States*. U.S. Government Publishing Office.

U.S. Department of Homeland Security. (2003). Student and Exchange Visitor Program: SEVIS overview and implementation. U.S. Immigration and Customs Enforcement.

U.S. Senate Permanent Subcommittee on Investigations. (2019). Threats to the U.S. research enterprise: China's talent recruitment plans. U.S. Government Publishing Office. https://www.hsgac.senate.gov/imo/media/doc/2019-11-

18%20PSI%20Staff%20Report%20-%20China%27s%20Talent%20Recruitment%20Plans.pdf

Wray, C. (2019, July 23). The threat posed by the Chinese government and the Chinese Communist Party to the economic and national security of the United States [Congressional testimony]. Federal Bureau of Investigation. https://www.fbi.gov/news/speeches/the-threat-posed-by-the-chinese-government-and-the-chinese-communist-party-to-the-economic-and-national-security-of-the-united-states